NIMBUSFLOW SOFTWARE, INC.
SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT: BASIC PLAN

This Software as a Service Subscription Agreement (the "Agreement") is entered into as of the date of Customer's acceptance (the "Effective Date") by and between NimbusFlow Software, Inc., a Delaware corporation ("Provider"), and the individual or entity accepting these terms ("Customer"). By clicking "I Agree," executing an order form, or accessing the Service, Customer acknowledges that it has read, understood, and agreed to be bound by this Agreement.

1. DEFINITIONS

1.1 "Service" means Provider's hosted software platform, including all updates, modifications, and associated documentation, made available to Customer under the Basic Plan.

1.2 "Subscription Term" means the Initial Term and each Renewal Term, as defined in Section 4.

1.3 "Fees" means all amounts payable by Customer under this Agreement, including the Setup Fee, Monthly Subscription Fees, and any applicable taxes, penalties, or charges.

2. GRANT OF LICENSE AND ACCESS

2.1 Subject to the terms of this Agreement and Customer's timely payment of all Fees, Provider grants Customer a limited, non-exclusive, non-transferable, non-sublicensable, revocable right to access and use the Service during the Subscription Term solely for Customer's internal business purposes.

2.2 Customer shall not (a) copy, modify, or create derivative works of the Service; (b) reverse engineer, decompile, or disassemble the Service; (c) resell or sublicense access to the Service; or (d) use the Service in violation of applicable law. Provider reserves all rights not expressly granted herein.

3. FEES AND BILLING

3.1 *Monthly Subscription Fee.* Customer shall pay Provider a recurring subscription fee of forty-nine dollars ($49.00) per month (the "Monthly Fee"), billed in advance on the same calendar day each month, using the payment method on file.

3.2 *Setup Fee.* Upon execution of this Agreement, Customer shall pay a one-time onboarding and account provisioning fee of one hundred fifty dollars ($150.00) (the "Setup Fee"). The Setup Fee is fully earned upon the Effective Date and is non-refundable and non-creditable under all circumstances, including termination for any reason.

3.3 *Late Payments.* Amounts not paid when due shall accrue interest at the lesser of 1.5% per month or the maximum rate permitted by law. Provider may suspend the Service upon ten (10) days' notice of non-payment without relieving Customer of its payment obligations.

3.4 *Taxes.* Fees are exclusive of all sales, use, VAT, and similar taxes, which shall be borne by Customer. Customer shall reimburse Provider for reasonable collection costs, including attorneys' fees, incurred in recovering overdue amounts.

3.5 *No Refunds.* Except as expressly provided herein, all Fees are non-cancellable and non-refundable. Provider may modify its fee schedule for any Renewal Term in accordance with Section 5.

4. TERM AND TERMINATION

4.1 *Initial Term.* This Agreement commences on the Effective Date and continues for a minimum commitment period of twelve (12) consecutive months (the "Initial Term"). Customer acknowledges that the Monthly Fee for the Initial Term reflects a discounted rate in consideration of Customer's commitment to the full Initial Term.

4.2 *Termination for Convenience.* Customer may not terminate this Agreement for convenience during the Initial Term except upon payment of the Early Termination Fee set forth in Section 4.3.

4.3 *Early Termination Fee.* If Customer cancels or terminates this Agreement, or if Provider terminates for Customer's breach, prior to the expiration of the then-current Subscription Term, Customer shall pay, as liquidated damages and not as a penalty, an amount equal to one hundred percent (100%) of the Monthly Fees remaining for the balance of the then-current Subscription Term (the "Early Termination Fee"). The Early Termination Fee shall be immediately due and payable and may be charged to the payment method on file. Customer acknowledges that this amount represents a reasonable pre-estimate of Provider's losses.

4.4 *Termination for Cause.* Either party may terminate this Agreement upon thirty (30) days' written notice of a material breach that remains uncured. Termination under this Section shall not relieve Customer of any amounts accrued prior to termination, nor of the Early Termination Fee where Customer is the breaching party.

4.5 *Effect of Termination.* Upon termination, Customer's access shall cease, and Provider may delete Customer Data after thirty (30) days. Sections 3, 4.3, 5, 7, and 8 survive termination.

5. AUTOMATIC RENEWAL

5.1 *Renewal.* Upon expiration of the Initial Term, this Agreement shall automatically renew for successive renewal periods of twelve (12) months each (each, a "Renewal Term"), unless Customer provides Provider with written notice of non-renewal no fewer than sixty (60) days prior to the end of the then-current term.

5.2 *Renewal Pricing.* Customer acknowledges and agrees that, effective as of the first day of any Renewal Term, the Monthly Fee shall increase to ninety-nine dollars ($99.00) per month, which Provider designates as its standard rate. Customer's failure to provide timely notice of non-renewal constitutes Customer's acceptance of the Renewal Term and the increased Monthly Fee.

5.3 *Notice Requirements.* To be effective, notice of non-renewal must be in writing, delivered by certified mail, return receipt requested, to Provider's registered address, and must identify Customer's account number. Notice delivered by email, telephone, or through the Service interface shall not constitute valid notice. Provider shall have no obligation to send renewal reminders.

5.4 Any notice delivered fewer than sixty (60) days before the end of the then-current term shall be effective only as to the subsequent Renewal Term, and the Early Termination Fee shall apply to the term then in effect.

6. WARRANTIES AND DISCLAIMERS

6.1 THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE." PROVIDER DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. PROVIDER DOES NOT WARRANT THAT THE SERVICE WILL BE UNINTERRUPTED OR ERROR-FREE.

7. LIMITATION OF LIABILITY AND INDEMNIFICATION

7.1 IN NO EVENT SHALL PROVIDER BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES. PROVIDER'S AGGREGATE LIABILITY SHALL NOT EXCEED THE MONTHLY FEES PAID BY CUSTOMER IN THE ONE (1) MONTH PRECEDING THE CLAIM.

7.2 Customer shall indemnify, defend, and hold harmless Provider from any claims arising from Customer's use of the Service or breach of this Agreement.

8. GENERAL PROVISIONS

8.1 This Agreement is governed by the laws of the State of Delaware, without regard to conflict-of-law principles. Any dispute shall be resolved by binding individual arbitration, and Customer waives any right to participate in a class action.

8.2 This Agreement constitutes the entire agreement between the parties. Provider may amend this Agreement upon notice posted to the Service. Continued use constitutes acceptance. If any provision is held unenforceable, the remainder shall remain in effect.